

24NNCV05484 24NNCV05484

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[TENTATIVE] ORDER GRANTING DEFENDANT'S MOTION TO COMPEL THE PRODUCTION OF PLAINTIFF'S VEHICLE FOR INSPECTION

I. INTRODUCTION

On October 31, 2024, Plaintiffs Teodulo Bonzon and Myla Bonzon ("Plaintiffs") filed this action against Defendant Toyota Motor Sales U.S.A., Inc. ("Defendant"), arising under the Song-Beverly Consumer Warranty Act and concerning alleged defects in Plaintiffs' vehicle.

On July 10, 2026, Defendant filed the instant motion to compel Plaintiffs to produce the subject vehicle for inspection and requests \$750 in monetary sanctions. No opposition or reply has been filed.

II. LEGAL STANDARD

Code of Civil Procedure section 2031.010(d) allows a party to inspect land or other property in the possession, custody, or control of any other party to the action. (Code Civ. Proc., § 2031.010, subd. (d).)

The party to whom a demand for inspection has been directed must respond with (1) a statement that the party will comply with the particular demand, (2) a representation that the party lacks the ability to comply with the demand or (3) an objection to the particular demand. (Code Civ. Proc., § 2031.210, subd. (a).)

Under CCP section 2031.310, on receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:

- (1) A statement of compliance with the demand is incomplete.
- (2) A representation of inability to comply is inadequate, incomplete, or evasive.
- (3) An objection in the response is without merit or too general.

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (See Cal. Code Civ. Proc., § 2031.310(b)(1).) In *Digital Music News LLC v Superior Court* (2014) 226 Cal.App.4th 216 at 224, the Court defined “good cause” as a showing that there is “a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.”

If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (*Kirkland v. Sup.Ct* (2002) 95 Cal. App.4th 92, 98.)

III. ANALYSIS

Defendant moves for an order compelling Plaintiffs to produce the subject vehicle for inspection. Defendant contends it served a notice of vehicle inspection on April 4, 2025, but Plaintiffs failed to produce the vehicle. Defendant further contends that, despite repeated meet-and-confer efforts and extensions, Plaintiffs have not provided a date for the inspection. (Cvetanoska Decl., ¶¶ 4-10.)

The Court finds the requested inspection appropriate. This is a Song-Beverly action in which the condition of the subject vehicle and its alleged defects are directly at issue. Defendant seeks to inspect the vehicle to determine what, if any, defects remain and whether other factors, such as accident damage or unauthorized modifications or abuse of the Subject Vehicle may have caused the alleged problems. (Motion, pp. 4-5.) Given the issues raised by Plaintiffs' claims, Defendant is entitled to inspect the vehicle.

Thus, the Court GRANTS Defendant's motion to compel vehicle inspection. Plaintiffs are ordered to produce the subject vehicle for inspection. The parties are ordered to meet and confer promptly regarding a mutually agreeable date, time, and location for the inspection.

Sanctions

Code of Civil Procedure section 2023.040 requires a party requesting monetary sanctions to identify in the notice of motion the person, party, or attorney against whom sanctions are sought and the type of sanction requested. The notice must also be supported by a declaration setting forth facts supporting the amount of any monetary sanction sought.

Here, Defendant requests \$750 in monetary sanctions. Defendant, however, does not identify the statutory basis for its request or provide evidence supporting the amount requested. (Motion, p. 6; Cvetanoska Decl., ¶ 13.) The Court therefore DENIES Defendant's request for monetary sanctions.

IV. CONCLUSION AND ORDER

The Court GRANTS Defendant's motion to compel production for vehicle inspection. Plaintiffs are ordered to produce the vehicle within five days of the completion of Plaintiffs' depositions. The parties are ordered to meet and confer and to select mutually agreeable dates.

Defendant is ordered to provide notice of this order.

Dated: August 18, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT